



POLICE DEPARTMENT

July 20, 2015

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Lisette Pedrosa
Tax Registry No. 935481
25 Precinct
Disciplinary Case Nos. 2012-8736 & 2014-12605

The above-named member of the Department appeared before the Honorable Claudia Daniels-DePeyster on February 17, February 27, March 6, and March 19, 2015, charged with the following:

Disciplinary Case No. 2012-8736

1. Said Police Officer Lisette Pedrosa, while on duty and assigned to the 25 Precinct, on or about February 22, 2012, failed to respond, report disposition promptly, or acknowledge radio calls made to her over her Department radio.

Interim Order No. 7, Page 2, Paragraph 4 – REVISION TO P.G. 206-03 – VIOLATIONS
SUBJECT TO COMMAND DISCIPLINE

P.G. 202-21, Page 1, Paragraph 19 – POLICE OFFICER

Disciplinary Case No. 2014-12605

1. Said Police Officer Lisette Pedrosa, on or about April 26, 2014, while on duty and assigned to the 25 Precinct, failed to make entries into said Police Officer's Activity Log, regarding the time she resumed patrol, the crime for which an arrest was made and who transported the prisoner from the scene to the precinct, as required.

P.G. 212-08, Page 1, Paragraph 1 – ACTIVITY LOGS

2. Said Police Officer Lisette Pedrosa, on or about April 26, 2014, while on duty and assigned to the 25 Precinct, was discourteous to New York City Police Sergeant Mark Danon, in that said officer said to Sergeant Danon, "This is fucking bullshit."

P.G. 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT – GENERAL REGULATIONS

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The Department was represented by Marissa Gillespie, Esq., Department Advocate's Office. Respondent was represented by Eric Sanders, Esq.

Respondent, through her counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

On April 14, 2015, the Honorable Claudia Daniels-DePeyster resigned her position as Assistant Deputy Commissioner, Trials. Counsel for both sides were informed of the Department's intention to have the matter reassigned to a new Assistant Deputy Commissioner, for the purpose of reviewing the transcript and rendering a verdict in this case. Alternatively, counsel were also given the opportunity to have the case re-tried, but each declined that offer. Accordingly, the case was re-assigned to me, and after reviewing the entire transcript, including exhibits, I submit the following report and recommendation.

DECISION

Disciplinary Case No. 2012-8736

Respondent is found Guilty.

Disciplinary Case No. 2014-12605

Respondent is found Not Guilty of Specification No. 1 and Guilty of Specification No. 2.

FINDINGS AND ANALYSIS

Disciplinary Case No. 2012-8736

It is alleged that on February 22, 2012, the 25th Precinct desk officer, Sgt. Jessica McRorie, made repeated efforts to reach Respondent on her radio to come to the desk for a

possible job assignment, but that Respondent failed to monitor her radio and respond to these calls. Sgt. Jessica McRorie testified that while working the desk that day, at approximately 1435 hours, she received a call from the Duty Captain regarding a backlog of jobs that needed to be handled within the precinct. The Captain requested that any sectors that were in the precinct on meal be sent out to handle the jobs. (Tr. 23) At that time, both Respondent and her partner, Officer Samia Johnson, were in separate areas of the precinct on meal, which was assigned for 1355 hours to 1455 hours. Within five minutes of receiving her instructions from the Captain, the Sergeant put out a radio call (a "10-2") requesting that Respondent and Officer Johnson respond to the desk. Officer Johnson, who already was near the desk, acknowledged that she heard the radio call (Tr. 202-3) and responded almost immediately; Respondent, though, did not respond. Over the ensuing 45 minutes, the Sergeant made repeated additional efforts to contact Respondent: she twice requested that Central try to reach Respondent; she tried calling Respondent's cell phone but was redirected to voicemail; she had Officer Johnson look for Respondent; and the Sergeant, herself, briefly looked for Respondent. All these efforts were to no avail, as the Sergeant was unable to locate Respondent. (Tr. 23-25)

Finally, at about 1527 hours, the Sergeant located Respondent in the 124 Room. When asked for an explanation for her failure to respond to the Sergeant's calls, Respondent claimed that she had been in the building the entire time, but that her day was over and she had turned her radio off. (Tr. 26) Respondent's tour that day was 0705 by 1540 hours. Dissatisfied with Respondent's explanation, the Sergeant wrote up a Command Discipline for Respondent's failure to monitor her radio and respond to repeated calls to report to the desk.

Counsel for Respondent spent a great deal of time cross-examining the Sergeant about her failure to produce documentation corroborating her account of the events at the precinct that

day. For example, counsel challenged the Sergeant for not having a printout confirming that there was, in fact, a backlog of cases to be assigned. (Tr. 34-6) Further, counsel questioned the Sergeant about whether there were other sectors available to go out into the field (Tr. 44). However, Respondent herself acknowledged that the precinct was busy during her tour (Tr. 444-45), as did her partner, Officer Johnson. (Tr. 224) Sergeant McRorie was detailed and consistent in her description of events inside the precinct that day, and I credit her account regarding the backlog of jobs to be assigned, and her efforts to reach Respondent.

Respondent claims, however, that she did not realize the Sergeant was trying to reach her. Respondent testified that she did not hear any radio calls from the Sergeant (Tr. 452), and that she only learned that the Sergeant was looking for her when some females in the locker room alerted her to this (Tr. 453-54), at which point Respondent went downstairs. Respondent insisted she had her radio on during her meal (Tr. 449). However, during a prior Department interview, Respondent acknowledged that perhaps she had her radio off during her meal. (Tr. 449-50) This earlier acknowledgment, combined with the Sergeant's testimony (referenced above) that Respondent had told her that her radio was off, and Respondent's failure to respond to the desk until approximately 45 minutes had passed, all point to the conclusion that Respondent was not, in fact, monitoring her radio, in violation of Patrol Guide 202-21 (19).

Respondent also claims that the Sergeant's accusation is retaliatory. Respondent testified that on January 22, 2012, about a month prior to this Command Discipline (Tr. 495), Respondent confronted Sergeant McRorie about improperly reducing the complaint charge on a case that Respondent was handling. Specifically, Respondent had responded to what she determined was a felony burglary incident; the Sergeant later came on the scene and at some point allegedly downgraded the complaint charge without any basis for doing so. (Tr. 386)

Respondent reported her concern to IAB, and also included this incident in a subsequent lawsuit filed against the City in 2013. (Tr. 498; Resp. Ex J) That lawsuit also contained accusations of sexual harassment against a Lieutenant at the precinct; back in 2010, Respondent had made allegations that her direct supervisor, Lieutenant Person A, was sexually harassing her. (Tr. 373-74) Respondent felt that since she had made these accusations, the supervisors at the precinct were all against her" (Tr. 388-89), and that this Command Discipline was a retaliation by the precinct against her,

I am not persuaded by Respondent's argument that the Sergeant's accusation is retaliatory. As Respondent herself acknowledges, Sergeant McRorie was her immediate supervisor, and they generally got along "pretty well." (Tr. 443) There were no other incidents between them, nothing to suggest that the Sergeant was out to get Respondent; the two of them were "fine." (Tr. 443) Also, though Sgt. McRorie at some point became aware that Respondent had made accusations of sexual harassment against another precinct supervisor (Tr. 62), there was no indication that the unrelated allegation of sexual harassment against a prior precinct Lieutenant back in 2010 had any bearing on anything that happened in this case. Further, as noted above, I found the Sergeant to be convincing in her description of the events that transpired at the precinct on February 22, and I credit her testimony that her reason for issuing the Command Discipline was not retaliatory. (Tr. 72-3) As such, I reject Respondent's defense of retaliation.

In light of the credible evidence presented by Sergeant McRorie, and the unpersuasive defense of retaliation proffered by Respondent, I find the Respondent Guilty of this specification, based on her failure to monitor her radio and to respond to repeated radio calls from her supervisor.

Disciplinary Case No. 2014-12605Specification 1

It is alleged that on April 26, 2014, Respondent failed to include relevant details in her Activity Log for that day. Sergeant Ivan Furda, an Assistant Integrity Control Officer ("ICO") at the 25th Precinct, testified that he reviewed Respondent's Activity Log for April 26, 2014, and found it to be deficient in detail. This review took place on October 16, 2014. Specifically, the Sergeant testified as to the memo book entries connected to an arrest Respondent made on April 26. Respondent had arrested a suspect named Person B. Initially, Respondent was going to issue Person B a Desk Appearance Ticket ("DAT"), but as will be discussed in greater length in the section dealing with Specification 2, below, the prisoner was instead put through the system. Sergeant Furda determined that there were "significant entries missing from Respondent's Activity Log" regarding that arrest. (Tr. 140)

The Department offered Respondent's Activity Log into evidence (Tr. 112; Dep. Ex. 1) A review of the log reveals that Respondent did include in her log the name of the person arrested, his date of birth, the time of the arrest, and the DAT number. However, there also was information omitted from Respondent's log, such as the arrest offense, the name of the officer who transported the prisoner to the precinct, and the time when Respondent resumed patrol. (Tr. 113-4)

On cross-examination, Respondent's counsel elicited that what drew the witness' attention to Respondent's Activity Log was a separate investigation involving Respondent and Sergeant Mark Danon, the subject matter of Specification 2, below. (Tr. 120-211) At no time prior to that day did the witness have cause to review Respondent's log. (Tr. 119) Also, on cross examination Sgt. Furda acknowledged that the information omitted from Respondent's log could

readily have been ascertained from other sources at the precinct based on the information that Respondent did include in her Activity Log. (Tr. 125, 131, 141)

Although the Department is correct that certain relevant information was missing from Respondent's Activity Log of April 26, 2014, under the totality of the circumstances these omissions are not enough to sustain a finding of guilt for this specification. This was not a situation where Respondent inexcusably made no reference to an important event that occurred during her tour; rather, Respondent did provide significant details connected with her arrest of a suspect. To be sure, an Activity Log is an "official account" of an officer's activity on her shift, and so, as indicated in Patrol Guide 212-08, it is important for an officer "to accurately record activities" in the log. The Patrol Guide requires, for instance, "pertinent information" regarding a suspected violation of the law (P.G. 212-08 (1) (c) (5)). In this case, I find that Respondent did include pertinent information regarding her arrest: the name and date of birth of the person arrested, the arrest time, the DAT number. Her failure to include certain other details does not warrant disciplinary action against her. Accordingly, I find Respondent Not Guilty of this specification regarding her Activity Log.

Specification 2

It is alleged that on April 26, 2014, Respondent was discourteous in her dealings with Sergeant Mark Danon, the desk officer at the 25 Precinct. On that date, Respondent arrested Person B; that arrest was the subject matter of the Activity Log charge discussed above. Sgt. Danon testified that at some point that day he was informed that Captain Holly had decided not to issue the prisoner a DAT because of his lengthy arrest record. (Tr. 245) When informed that he would not be receiving a DAT and would instead be processed as a regular arrest, Person B became irate and insisted that he needed to go to a hospital. (Tr. 266-67)

It is undisputed that in order to process the arrest of Person B, Respondent was required to work overtime. Initially, Sgt. Danon informed Respondent that she was going to be responsible for accompanying the prisoner to the hospital; Respondent was upset and said to the Sergeant, "This is bullshit, I haven't had a meal yet." (Tr. 248) (Later, Sergeant Danon checked the records and learned that Respondent had, in fact, had an hour for meal at 1200 hours (Tr. 250), though Respondent testified that she didn't actually eat. (Tr. 476)) However, once Respondent completed her arrest paperwork, the precinct policy required that someone else accompany the prisoner to the hospital, so Respondent was relieved of that responsibility. (Tr. 251)

According to Sgt. Danon, he informed Respondent that since she was done with her arrest processing she could now change her clothes and end her tour. (Tr. 251) At approximately 1910 hours, Respondent handed an overtime slip to the Sergeant and left the building. Sgt. Danon looked at the slip and called Respondent back to the desk in order to tell her that he would not approve the full overtime that she had requested. Specifically, Sgt. Danon was concerned that Respondent had listed that she had worked until 1910 hours, whereas the Sgt. had witnessed Respondent just chatting with the Telephone Switchboard ("TS") operator (Officer Tom Stefanski) for about 35 minutes prior to handing in her slip; the Sergeant did not feel that Respondent was entitled to overtime for those 35 minutes. (Tr. 252) Respondent testified that she was, in fact, still working on her arrest until 1910 hours, that she was finalizing the signing of the criminal court affidavit with the Assistant District Attorney, and that there was some delay in her faxing the signed affidavit back to the A.D.A. (Tr. 424) As for the conversation with the TS officer, Officer Stefanski testified that the conversation with Respondent only lasted two or three minutes. (Tr. 178, 181-2)

Counsel for Respondent argues that Sgt. Danon was incorrect in not signing off on Respondent's overtime request. I found Sgt. Danon's testimony to be detailed, consistent and convincing. I do, however, recognize that it is possible that the Sergeant was incorrect as to the length of the conversation between Respondent and Officer Stefanski, as well as in his estimation of how long Respondent was working on her arrest processing; however, if there was such an error, I find nothing in the record to persuade me that it was a deliberate twisting of the facts against Respondent, as opposed to a mistake.

But even if Respondent did have a right to be angry at this mistake, and even if she already was upset because she earlier had to postpone her birthday dinner plans for that evening (Tr. 478), that still did not justify Respondent's behavior in the encounter with Sgt. Danon that followed. Sgt. Danon testified that when he explained to Respondent why he wouldn't sign off on her overtime request, she became visibly upset and said, "This is fucking bullshit, you better not change my sign-out time in the roll call." (Tr. 253) Officer Stefanski also heard Respondent say this, though he noted that Respondent was looking off at the clock when she made that statement. (Tr. 179) At this point, Sgt. Danon again tried to explain his reasons why he would not approve the overtime, and suggested that Respondent take up the matter with her squad sergeant, but Respondent continued to curse and use abusive language toward the Sergeant in a loud voice. Other people in the command began to take notice, including at least one civilian. The Sergeant, who did not use any curse words himself, repeatedly urged Respondent to calm down, but the loud, abusive language continued for two-to-four minutes. (Tr. 252-55) Officer Stefanski corroborated that a civilian complainant was in the precinct at the time and witnessed this exchange (Tr. 180). Officer Stefanski also testified that another Sergeant, Sgt. Williams, had to remove Respondent to the Juvenile Room in order to calm her down. (Tr. 180) Respondent,

herself, testified that she and the Sergeant were arguing in loud voices, and admitted that she was “really frustrated”, though she denied she cursed at the Sergeant, and claimed not to recall much of what she said during the exchange. (Tr. 491-92)

After considering each of the witnesses’ descriptions of the encounter, I find that Respondent was discourteous toward Sgt. Danon, in that she continued to argue loudly, curse, and use abusive language toward the Sergeant, in an open area of the precinct where other people were around, including at least one civilian. Even allowing for some level of frustration on the part of Respondent, her conduct here was inappropriate.

Also, I am not persuaded that Sgt. Danon’s decision to issue the Command Discipline to Respondent was in any way retaliatory. The Sergeant had no prior relationship with Respondent, and was not even aware of any allegations of misconduct Respondent had made against other members of the precinct. (Tr. 242-43) Indeed, at some point after April 26, Sgt. Danon suggested to the Captain that Respondent be given “the least amount of time” that the Captain would be comfortable taking for this incident (Tr. 257); such a statement is inconsistent with the Sgt. having any type of vendetta against Respondent. As stated above, I find Sgt. Danon’s testimony to have been convincing, and I reject any claim of retaliation as a defense to this charge. Accordingly, on this specification for discourteous behavior toward her Sergeant, I find Respondent Guilty.

PENALTY

In order to determine an appropriate penalty, Respondent’s service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on July 1, 2004. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

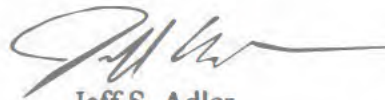
Respondent has been found guilty of two of the three charges against her: failing to acknowledge radio calls over her Department radio, and acting in a discourteous manner toward her Sergeant. The Department sought a cumulative penalty of forfeiture of 15 vacation days, though that recommendation was made before Respondent was found Not Guilty on the charge connected with her Activity Log. For the reasons set forth below, I recommend that Respondent receive a cumulative penalty of forfeiture of 12 vacation days.

On the initial case against Respondent, the charge dealing with failing to monitor her radio under Disciplinary Case No. 2012-8736, the Department initially recommended a penalty of forfeiture of two vacation days. While it is true that subsequent to that case Respondent was involved in an additional incident for which she has been found guilty, I feel that the original suggestion by the Department was appropriate for the first charge. In that case, Respondent was on meal near the end of her shift. However, even if she had the expectation that she wouldn't be sent out on any more jobs at that point, Respondent still was on duty and had the continuing responsibility to monitor her Department radio in case she needed to be reached. The importance of this requirement was highlighted here, as a backlog of cases necessitated pulling any available sectors off meal and sending them out to the field to help handle the open jobs. Since Respondent wasn't properly monitoring her radio and failed to respond in a timely manner, the Sergeant was unable to send her out to deal with an open case. Accordingly, the penalty originally suggested by the Department, a forfeiture of two vacation days, is appropriate.

As to the second charge on which Respondent has been found guilty, for being discourteous toward her Sergeant at the precinct, the second specification under Disciplinary Case No. 2014-12605, a more severe penalty is warranted. In that case, Respondent was loud and inappropriate in an open area of the precinct for several minutes. Sgt. Danon gave her

repeated opportunities to calm down, but Respondent persisted with her abusive language, while others inside the precinct, including at least one civilian, looked on. Respondent's behavior was so bad that another Sergeant had to take her to a different room in order to quell the disturbance. Even if Respondent had some basis for the frustration she was feeling, she still had a responsibility to behave professionally and responsibly, neither of which she did here. Accordingly, I recommend that Respondent forfeit 10 vacation days for this conduct, bringing the total penalty to a forfeiture of 12 vacation days.

Respectfully submitted,



Jeff S. Adler

Assistant Deputy Commissioner – Trials

APPROVED

NOV 19 2015

WILLIAM J. BRATTON
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER LISETTE PEDROSA
TAX REGISTRY NO. 935481
DISCIPLINARY CASE NOS. 2012-8736 & 2014-12605

Respondent received an overall rating of 3.5 “Highly Competent/Competent” on her last three annual performance evaluations. [REDACTED]

[REDACTED] Respondent has no prior formal disciplinary record.

For your consideration.



Jeff S. Adler
Assistant Deputy Commissioner – Trials